In order to achieve the goal set out in paragraph 11-1.1 above, the voyage plan shall take into account the potential hazards of the intended voyage.

11-1.3 Requirements

In order to comply with the functional requirement of paragraph 11 -1.2 above, the master shall consider a route through polar waters, taking into account the following:

.1 the procedures required by the safety management system on board; if no safety management system is implemented there shall be a documented procedure for operation in polar waters;

.2 any limitations of the hydrographic information and aids to navigation available;

SOURCE: MSC.538(107).pdf
URL:
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be a documented procedure for operation in polar waters;

.2 any limitations of the hydrographic information and aids to navigation available;

.3 current information on the extent and type of ice and icebergs in the vicinity of the intended route;

.4 statistical information on ice and temperatures from former years;

.5 places of refuge;

.6 current information and measures to be taken when marine mammals are encountered relating to known areas with densities of marine mammals, including seasonal migration areas;

.7 current information on relevant ships' routeing systems, speed recommendations and vessel traffic services relating to known areas with densities of marine mammals, including seasonal migration areas;

.8 national and international designated protected areas along the route; and

.9 operation in areas remote from search and rescue (SAR) capabilities."

RESOLUTION MSC.538(107) (adopted on 8 June 2023)

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route; and

.9 operation in areas remote from search and rescue (SAR)
capabilities."

ANNEX 2

AMENDMENTS TO THE INTERNATIONAL CODE FOR
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

Part I-B
Additional guidance regarding the provisions of the Introduction and Part I-A

10 Additional guidance to chapter 9
(Safety of navigation)

7 The heading of section 10 is replaced by the following:

"10 Additional guidance to chapters 9 and 9-1"

12 Additional guidance to chapter 11
(Voyage planning)

8 The heading of section 12 is replaced by the following:

"12 Additional guidance to chapters 11 and 11-1"

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RESOLUTION MSC.538(107)
(adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CODE FOR
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)
THE MARITIME SAFETY COMMITTEE,
RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
NOTING resolution MSC.385(94), by which it adopted the safety -related provisions of the Introduction, and the whole of parts I-A and I-B of the International Code for Ships Operating in Polar Waters ("the Polar Code"), which became mandatory under chapter XIV of the International Convention for the Safety of Life at Sea, 1974 ("the Convention"),
NOTING ALSO article VIII(b) and regulation XIV/1.1.1 of the Convention concerning the procedure for amending the safety -related provisions of the introduction and part I -A of the Polar Code,
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SOURCE: MSC.538(107).pdf
URL:
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procedure for amending the safety -related provisions of the introduction and part I -A of the Polar Code,
NOTING FURTHER regulation XIV/1.1.2 of the Convention concerning the procedure for amending part I-B of the Polar Code,
RECOGNIZING the need to introduce safety measures for non-SOLAS ships operating in polar waters,
HAVING CONSIDERED, at its 107th session, amendments to the Polar Code proposed and circulated in accordance with article VIII(b)(i) of the Convention,
1 ADOPTS, in accordance with article VIII(b)(iv) of the Convention, amendments to part I-A of the Polar Code, the text of which is set out in annex 1 to the present resolution;
2 ALSO ADOPTS, in accordance with regulation XIV/1.1.2 of the Convention, amendments to part I-B of the Polar Code, the text of which is set out in annex 2 to the present resolution;
3 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the
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resolution;
3 DETERMINES, in accordance with article VIII(b)(vi)(2)(bb) of the Convention, that the amendments to part I -A of the Polar Code shall be deemed to have been accepted on 1 July 2025, unless, prior to that date, more than one third of the Contracting Governments to the Convention or Contracting Governments the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet have notified their objections to the amendments;
4 INVITES Contracting Governments to the Convention to note that, in accordance with

article VIII(b)(vii)(2) of the Convention, said amendments shall enter into force on 1 January 2026 upon their acceptance in accordance with paragraph 3 above;

5 ALSO INVITES Contracting Governments to the Convention to note that the amendments to part I-B of the Polar Code will take effect on 1 January 2026 upon entry into force of the amendments to part I-A of the Code set out in annex 1.

SOURCE: MSC.538(107).pdf

URL:

https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.538(107).pdf

force of the amendments to part I-A of the Code set out in annex 1.

6 REQUESTS the Secretary -General, for the purposes of article VIII(b)(v) of the Convention, to transmit certified copies of the present resolution and the text of the amendments contained in the annexes to all Contracting Governments to the Convention;

7 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its annexes to Members of the Organization which are not Contracting Governments to the Convention.

RESOLUTION MSC.538(107) (adopted on 8 June 2023)
AMENDMENTS TO THE INTERNATIONAL CODE FOR
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

ANNEX 1

AMENDMENTS TO THE INTERNATIONAL CODE FOR
SHIPS OPERATING IN POLAR WATERS (POLAR CODE)

Part I-A
Safety measures

Chapter 9